

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
PAMELA MOFUNANYA, A.K.A. PAMELA CRENSHAW,

Plaintiff,

SUMMONS
INDEX NO.:

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER CHRISTINA DAGOSTINO, TAX ID# 958460, 60TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, SGT. SINNOTT JAMES, TAX ID# 934188, 60TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER WILSON, SHEILD UNKNOWN, 60TH PCT., INDIVIDUALLY AND AS A POLICER OFFICER, POLICE OFFICER JANE DOE (OLIVE COMPLEXION WITH BLOND HAIR, OF MEDIUM HEIGHT, MID-FIFTIES), IDENTITY CURRENTLY UNKNOWN, INDIVIDUALLY AND AS A POLICE OFFICER, BEST BUY LIQUORS, VICTORIA AND EDWARD VUGMAYSTER, OWNERS OF BEST BUY LIQUORS, BOTH INDIVIDUALLY AND AS A BUSINESS ENTITY, AND JULIE FRANCISCO, EMPLOYEE OF BEST BUY LIQUORS,

Plaintiff designates Kings County as the place of trial. The basis of the venue is that Kings County is the place where the cause of action arose.

Defendants.

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 26, 2019


EMDIN & RUSSELL, LLP.
Attorneys for Plaintiff
499 Seventh Avenue 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Christina D'Agostino
Tax ID# 958460
c/o 60th Precinct
2951 W 8th Street
Brooklyn, NY 11224

Sergeant Sinnott James
Tax ID# 934188
c/o 60th Precinct
2951 W 8th Street
Brooklyn, NY 11224

Police Officer Wilson
Address & Shield Unknown

Police Officer Jane Doe
Address Unknown

Best Buy Liquors
C/o Victoria and Edward Vugmayster
Owners of Best Buy Liquors
1613 Neptune Avenue
Brooklyn, NY 11224

Julie Francisco
Employee of Best Buy Liquors
c/o Best Buy Liquors
1613 Neptune Avenue
Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
PAMELA MOFUNANYA, A.K.A. PAMELA CRENSHAW,

Plaintiff,

VERIFIED COMPLAINT
INDEX NO.:

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER CHRISTINA
DAGOSTINO, TAX ID# 958460, 60TH PCT., INDIVIDUALLY
AND AS A POLICE OFFICER, SGT. SINNOTT JAMES, TAX
ID# 934188, 60TH PCT., INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER WILSON, SHEILD UNKNOWN,
60TH PCT., INDIVIDUALLY AND AS A POLICER OFFICER,
POLICE OFFICER JANE DOE (OLIVE COMPLEXION WITH
BLOND HAIR, OF MEDIUM HEIGHT, MID-FIFTIES),
IDENTITY CURRENTLY UNKNOWN, INDIVIDUALLY
AND AS A POLICE OFFICER, BEST BUY LIQUORS,
VICTORIA AND EDWARD VUGMAYSTER, OWNERS OF
BEST BUY LIQUORS, BOTH INDIVIDUALLY AND AS A
BUSINESS ENTITY, AND JULIE FRANCISCO, EMPLOYEE
OF BEST BUY LIQUORS,

Defendants.

-----X

The plaintiff, Pamela Mofunanya, by her attorneys, Emdin & Russell, L.L.P.,
complaining of the defendants respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, the
City of New York, hereinafter referred to as "City", was and still is a municipal
corporation duly organized and existing under and by virtue of the laws of the State of
New York.
2. Upon information and belief, that at all times hereinafter mentioned, the defendant "City"
its agents, servants and employees operated, maintained and controlled the Police
Department of the City of New York hereinafter referred to as "NYPD" including all the

police officers thereof.

3. Upon information and belief, that at all times hereinafter mentioned, specifically on the 7th day of July, 2018, at approximately 04:15 p.m., Police Officer D'Agostino, Tax ID # 958460 hereinafter referred to as "D'Agostino," and Sgt. James, Tax ID # 934188 hereinafter referred to as "James," Police Officer Wilson, shield unknown, hereinafter referred to as "Wilson," Police Officer Jane Doe (olive complexion blonde hair female, mid 50s), identity presently unknown, hereinafter referred to as "Doe," collectively referred to as the "Officers," each of the 60th Pct., were employed by the defendant, "City," and/or "NYPD" as police officers, and were assigned to the 60th Pct. and at all times hereinafter mentioned acted in the capacity of police officers. Each sued individually and as police officers.
4. Upon information and belief, all named Police Officers and Jane Doe "the officers" were screened, interviewed, hired by the "City", trained by the "City", was retained by the "City", and was investigated, monitored, supervised and/or disciplined by the "City".
5. Upon information and belief, Best Buy Liquors, Inc. at all times herein mentioned was and still is a Domestic Business Corporation, established on or about July 25, 2002, organized and existing under the laws of the State of New York, with its principal place of business situated in the County of Kings and the State of New York, more specifically 1613 Neptune Avenue, Brooklyn, New York 11224.
6. Upon information and belief and that at all times hereinafter mentioned, the Defendant, Best Buy Liquors, Inc. was and still is an American based corporation with the corporate headquarters corporate located at 1613 Neptune Avenue, Brooklyn, New York 11224

and operating a business in New York.

7. Best Buy Liquors Inc. and New York headquarter is located at 1613 Neptune Avenue, Brooklyn, New York 11224.
8. Upon information and belief “Best Buy Liquors” by doing business within New York, “Best Buy Liquors Inc.” is subject to the jurisdiction and laws governing the State of New York.
9. Upon information and belief, that at all times hereinafter mentioned, “Best Buy Liquors, Inc.” operates a store located at 1613 Neptune Avenue, Brooklyn New York 11224.
10. Upon information and belief, Victoria and Edward Vugmayster are hereinafter referred to as “Vugmayster,” are the owners of Best Buy Liquors located at 1613 Neptune Avenue, Brooklyn New York 11224, who trained and hired employees to manage the Best Buy Liquors Store, and has granted employees, managers and other Best Buy Liquors personnel to act on behalf of them and Best Buy Liquors.
11. Upon information and belief, Julia Francisco, hereinafter referred to as “Francisco,” is an employee or was an employee, at the time of the herein incident, of Best Buy Liquors and has the authority to act on behalf of Best Buy Liquors, and was working within the scope of her employment.
12. That the plaintiff, Pamela Mofunanya, a.k.a. Pamela Crenshaw, hereinafter referred to as “Pamela,” is a resident of Kings County and timely filed and served a Notice of Claim on the City.
13. The City acknowledged receipt of the notice of claim and a 50(h) hearing of the plaintiff was conducted on October 18, 2018.

14. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.
15. That this action is commenced within one year and 90 days after the cause of action arose.
16. Upon information and belief, at all times hereinafter mentioned, and specifically on the 7th day of July, 2018, at approximately 4:15 p.m., Pamela was arrested by D'Agostino, for the alleged crime of petty larceny. This occurred in the presence of other officers from the 60th pct., such as Wilson and Doe, and was approved by Sgt. James.
17. On or about July 7, 2018 at approximately 4:15 p.m., Pamela was stopped while driving her motor vehicle in the vicinity of Cropsey Avenue and Bay 49th Street, Brooklyn, New York.
18. Upon information and belief, "Officer's" Wilson and D'Agostino were acting in response to a complaint from Best Buy Liquors' employee, "Francisco." Best Buy Liquors is owned by Victoria and Edward Vugmayster. Francisco alleged that Pamela stole a bottle of "Rum Chata" liquor.
19. Pamela showed Officers Wilson, D'Agostino and Doe proof of purchase of a bottle of Tequila and that she was not in possession of the abovementioned liquor "Rum Chata".
20. Officer Wilson and/or Officer D'Agostino ordered Pamela out of her car and arrested her despite proof of purchase and her request to view any store video. Pamela was handcuffed and arrested.
21. Pamela was thereafter taken in handcuffs to the 60th Pct., whereupon she was searched

by Officer D'Agostino.

22. Pamela's inner thighs and breasts were felt/touched during this unlawful and unwarranted search by Officer D'Agostino, and she was then placed in a holding cell for approximately one hour to one hour and a half before she was fingerprinted, photographed and placed back in a detention cell and then released approximately one hour to one hour and a half later.
23. In total, Pamela was detained for two hours to two and a half hours before receiving a Desk Appearance Ticket.
24. During Pamela's illegal detention, she requested the officers to review the store's video for which "James" said he already did and was going back to Best Buy Liquors to do so and secure the video.
25. Prior to Pamela's release, Pamela inquired as to whether the videotape was retrieved and viewed, but she received no response.
26. Pamela was given a Desk Appearance Ticket to appear in Court in August and on that Court date her case was dismissed and sealed within 24 hours.
27. The arrest, imprisonment, and physical contact were all without just cause, provocation, and said actions were excessive, offensive to Pamela, unprivileged and without her consent.
28. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting in the scope of their employment.
29. The City of New York, their agents, servants or employees intended to confine the Plaintiff; Plaintiff was conscious of confinement and did not consent thereto, and

confinement was not otherwise privileged, all without just right, probable cause and without grounds therefore.

30. The defendants violated the Plaintiff's Civil Rights under 42 USCS §1983 and 28 USCS §§ 1331 and 1343, in that the Plaintiff was deprived of her rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused the Plaintiff to be so deprived as stated on this complaint herein, and in that defendants, their agents, servants or employees illegally stopped the plaintiff, illegally seized and arrested the plaintiff absent any justifiable reason for doing so; conspired to deprive the plaintiff of due process and equal protection under the law, including the suppression of exculpatory information; maliciously prosecuted the plaintiff; and further violations of plaintiff's rights and privileges secured to her under the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a State, caused plaintiff to be so deprived of her rights, privileges and immunities secured to her under the Constitution of the United States and the State of New York.
31. The defendants were negligent in failing to use such care in the performance of police duties as a reasonably prudent and careful police officer or officers would have used under similar circumstances, in permitting the police officers to continue to perform their duties in an improper, negligent, careless and reckless manner all without any negligence on the part of the plaintiff contributing thereto.
32. The defendants "City" and/or "the NYPD" were negligent in supervising, monitoring, assigning, reviewing, disciplining and promoting the subject officers.

33. The defendants Vugmayster and Francisco were negligent in that, they failed to use such care in the performance of their duties as reasonably prudent owners and/or employees of an establishment opened to the public in order to purchase items.
34. The defendants Vugmayster and Francisco were negligent in that, they failed to use such care in the performance of their duties as owners and/or employees of an establishment opened to the public to purchase items as reasonable owners and/or employees would have used under similar circumstances.
35. The defendants Vugmayster were negligent in allowing Francisco to perform or continue to perform duties in an improper, negligent, careless and reckless manner all without any negligence on the part of the plaintiff contributing thereto.
36. The defendants Vugmayster were negligent in supervising, monitoring, assigning, reviewing, disciplining and/or promoting negligent employees such as Francisco.
37. Plaintiff Pamela was and is, at all times innocent of all charges and had committed no crime.
38. That this action falls within one of the exceptions of CPLR §1601.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT**

39. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "38" with the same force and effect as if more fully and at length set forth herein.
40. That beginning on or about the 7th day of July, 2018, at the approximate hour of 4:15 p.m., the defendants, and their agents, servants and/or employees intentionally

handcuffed and imprisoned the plaintiff, without any just cause or grounds therefore and held her against her will under full force of arms.

41. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or any cause to believe that the plaintiff was guilty of any crimes, or that the defendants had just cause to imprison the plaintiff, given Pamela's presentation of the items she purchased, no evidence of the alleged stolen property on Pamela's person or property nor any review of the Best Buy Liquors' video surveillance.
42. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest or imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
43. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; in that the plaintiff was conscious of her confinement; the plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.
44. That by reason of the aforesaid false imprisonment and detention of the plaintiff, she was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.
45. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF
ACTION FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS**

46. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if more fully and at length set forth herein.
47. That on the 7th day of July, 2018 at approximately 4:15 p.m. the defendant "Officers", and their agents, servants and/or employees intentionally and knowingly arrested, handcuffed, detained and imprisoned plaintiff, without any just cause or grounds therefore, and held her against her will under full force of arms until she was released two to two and a half hours later after receiving a Desk Appearance Ticket.
48. That the plaintiff was falsely arrested, imprisoned and accused by the defendants, their agents, servants and/or employees of having committed the crime of petty larceny.
49. That said arrest was caused by the defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the plaintiff was guilty of any crime. That said false arrest was also caused by defendants Vugmayster and Francisco, without any reasonable grounds or cause to believe that the plaintiff was guilty of any crime.
50. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to her arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against her will.
51. The defendants, their agents, servants and/or employees, as well as defendants Vugmayster and Francisco as set forth above, intended to seize, handcuff and arrest the

plaintiff; the plaintiff was conscious of her arrest and confinement; the plaintiff did not consent to her arrest and confinement; and the arrest and confinement was not otherwise privileged.

52. That by reason of the aforesaid false arrest and false charges filed against her, the plaintiff was subjected to great indignity, humiliation, and distress of mind and body and the said plaintiff has been otherwise damaged.

53. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST DEFENDANTS D'AGOSTINO, JAMES, WILSON
AND DOE FOR BATTERY:

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "53" with the same force and effect as if fully set forth herein.

55. Upon information and belief, on or about the 7th day of July, 2018, commencing at the approximate hour of 4:15 p.m. the defendants, while acting in the scope of their employment as police officers and as agents for the defendant the "City", without just cause or provocation searched, and handcuffed the plaintiff.

56. That all said contact was committed without the plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery to the plaintiff.

57. That said acts occurred within the scope of the police officers' employment with the "City".

58. That by reason of the aforesaid intentional battery, the plaintiff suffered and still continues to suffer from emotional trauma, and that she was otherwise damaged.
59. That by reason of the aforesaid battery, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if fully set forth herein.
61. That defendant "City", Defendants "Vugmayster" and "Francisco", respectively, were careless and reckless in hiring, retaining, assigning, training, failing to re-train, monitoring, supervising and promoting as and for its employees, defendants "officers" and "Francisco", in that said employment(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. police officers and/or employees of an establishment opened to the public; in that the defendants "City" and "Vugmayster", respectively, failed to exercise due care and caution in its hiring and promoting practices; in that the defendants "City" and "Vugmayster", respectively, failed to investigate the above named employees' backgrounds; in that the defendants "City" and "Vugmayster", respectively, failed to properly train, supervise and monitor the "officers" and/or employee (Francisco); in that the defendant "City" and "Vugmayster", respectively, were negligent in disciplining, retaining and retraining the named defendant "Officers" and employee (Francisco); and

in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

62. That upon information and belief, the "City" by and through its agents had received numerous civilian complaints and/or lawsuits against defendants "Officers" and/or the 60th Pct. that they were assigned to prior to their seizure, search, discourtesy, falsification of evidence and battery of the plaintiff on July 7, 2018.
63. That the "City" failed to properly retrain said "Officers," negligently continued to employ said "Officers," negligently retained D'Agostino, Wilson, James and Doe despite evidence of their police misconduct and continued to assign said officers to act in their capacities as police officers without proper supervision, training and discipline.
64. That the "Officers" while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of their police duties as a reasonable prudent and careful police officer would have used under similar circumstances, in that each was negligent, careless and reckless in the manner in which they investigated and/or performed their police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or conducted the false arrest and/or permitted the submission of false documentation by these and other officers; and in that the defendants "Officers," their agents, servants and/or employees were otherwise careless, reckless and negligent.
65. That Francisco, while acting within the scope of her employment, was negligent, in that she failed to use such care in the performance of her duty as a reasonable, prudent and careful store-employee, staff, cashier and/or manager would have used under similar

circumstances; in that she was negligent, careless and reckless in the manner in which she performed her duties; in that she failed to mitigate and/or intervene any police misconduct.

66. That the aforesaid occurrence to wit; battery, false detention, arrest and imprisonment and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of negligence of all the defendants, its agents, servants and/or employees including but not limited to defendants "Officers" without any negligence on the part of the plaintiff contributing thereto.
67. That defendants Best Buy Liquors and Vugmayster were careless and reckless in hiring, retaining, assigning, training, failing to re-train, monitoring, supervising and promoting as and for its employee, defendant Francisco, in that said employee lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. cashier/manager; in that the defendants Best Buy Liquors and Vugmayster failed to exercise due care and caution in its hiring and promoting practices; in that the defendants Best Buy Liquors and Vugmayster failed to investigate the above named employee's background; in that the defendants Best Buy Liquors and Vugmayster failed to properly train, supervise and monitor Francisco in that the defendants Best Buy Liquors and Vugmayster were negligent in disciplining, retaining and retraining Francisco; and in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.
68. That Best Buy Liquors' and Vugmayster's failure to properly retrain Francisco and negligence in continuing to employ Francisco, negligence in retaining Francisco despite

evidence of her own negligence, carelessness and/or recklessness, resulted in physical and emotional injury to the plaintiff. Best Buy Liquors and Vugmayster continued to assign said employee to act in her capacity as a cashier/manager without proper supervision, training and discipline.

69. That Francisco, while acting within the scope of her employment, was negligent in that she failed to use such care in the performance of her duties as a reasonable prudent and careful employee would have used under similar circumstances; in that she was negligent, careless and reckless in the manner in which she investigated and/or performed her duties; in that Best Buy Liquors permitted or assisted in the false arrest and/or permitted the false arrest by way of submitting false documentation; and in that the defendants Best Buy Liquors and Vugmayster, their agents, servants and/or employees were otherwise careless, reckless and negligent.
70. That employee Francisco was negligent, careless, and reckless in her duties as an employee for Best Buy Liquors in not reviewing any and all surveillance videos of Best Buy Liquors, or any and all receipts by Pamela.
71. That employee Francisco failed to inquire of Pamela of any purchase while Pamela was in Best Buy Liquors or walking therefrom, and failed to adhere to Best Buy Liquors' procedures and protocols when suspecting theft.
72. That Vugmayster, the owner of Best Buy Liquors failed in all aspects as to hiring, training, disciplining and retraining Francisco.
73. That by reason of the aforesaid, the Plaintiff was imprisoned, lost her freedom, and stressed, and she was thereby damaged.

74. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983
BY "D'AGOSTINO", "JAMES", "WILSON" AND "DOE"
EACH IN THEIR INDIVIDUAL CAPACITIES AND AS AN AGENT
OF THE CITY OF NEW YORK

75. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "74" with the same force and effect as if more fully and at length set forth herein.

76. That at all times hereinafter mentioned, D'Agostino, James, Wilson and Doe were employed by the defendant The City of New York and/or The New York City Police Department, and each was acting under the color of his/her official capacity, and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

77. That at all time hereinafter mentioned D'Agostino, James, Wilson and Doe, individually and collectively, acted pursuant to orders and directives from defendant, The City of New York.

78. That during all times hereinafter mentioned, the "Officers" acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth in this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth and Fourteenth Amendments to

the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and/or Section 1988.

79. That the unlawful and illegal conduct of the defendants "Officers" deprived the plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in her person and effects against unreasonable search and seizure, under the Fourth and Fourteenth Amendments to the Constitution of the United States.

80. That by reason of the aforesaid violations, including but not limited to: illegal search and seizure; seizure of plaintiff's person, her false arrest and false imprisonment, battery and assault, failure to intervene and excessive detention, D'Agostino, James, Wilson and Doe violated plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to her in the Constitution of the State of New York, and laws thereto, The defendant officers violated 42 U.S.C. §1983.

81. That as a direct proximate result of the defendants actions, the plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

82. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and she has expended and incurred divers sums of money in an effort to cure herself of said injuries, to extricate herself from the indignities and humiliation foisted upon her by the actions of the defendants.

83. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the Court may seem just and proper.

WHEREFORE, the plaintiff demands judgment against the defendants on the First through Fourth cause of action in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such further relief as to the court seems just and proper.

DATED: New York, New York
April 26, 2019



Royce Russell, Esq.
Bordin & Russell, L.L.P.
Attorneys for Plaintiff
499 Seventh Avenue
Suite 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside in the County where the undersigned maintains an office.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
April 26, 2019


By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

PAMELA MOFUNANYA, A.K.A. PAMELA CRENSHAW,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER CHRISTINA DAGOSTINO, TAX ID# 958460, 60TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, SGT. SINNOTT JAMES, TAX ID# 934188, 60TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER WILSON, SHEILD UNKNOWN, 60T PCT., INDIVIDUALLY AND AS A POLICER OFFICER, POLICE OFFICER JANE DOE (OLIVE COMPLEXION WITH BLOND HAIR, OF MEDIUM HEIGHT, MID-FIFTIES), IDENTITY CURRENTLY UNKNOWN, INDIVIDUALLY AND AS A POLICE OFFICER, BEST BUY LIQUORS, VICTORIA AND EDWARD VUGMAYSTER, OWNERS OF BEST BUY LIQUORS, BOTH INDIVIDUALLY AND AS A BUSINESS ENTITY, AND JULIE FRANCISCO, EMPLOYEE OF BEST BUY LIQUORS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

To:	City of New York c/o Office of the Corporation Counsel 100 Church Street New York, NY 10007	Police Officer Christina D'Agostino Tax ID# 958460 c/o 60th Precinct 2951 W 8th Street Brooklyn, NY 11224	Best Buy Liquors C/o Victoria and Edward Vugmayster Owner of Best Buy Liquors 1613 Neptune Avenue Brooklyn, NY 11224
	The New York City Police Department 1 Police Plaza New York, New York 10038	Sergeant Sinnott James Tax ID# 934188 c/o 60th Precinct 2951 W 8th Street Brooklyn, NY 11224	Julie Francisco Employee of Best Buy Liquors c/o Best Buy Liquors 1613 Neptune Avenue Brooklyn, NY 11224
	Police Officer Wilson Address & Shield Unknown	Police Officer Jane Doe Address Unknown	

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 26 2019

Signature

Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on